UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF NEW YORK

UNITED STATES OF AMERICA,	No. 6:18-CR-06018-DGL-MWP
v.	Hon. David G. Larimer
JEFFREY BERNECKY, Defendant.	**MOTION TO CLARIFY OR MODIFY CONDITIONS OF SUPERVISED RELEASE AND FOR APPOINTMENT OF COUNSEL**

Defendant Jeffrey Bernecky, pro se, respectfully moves under 18 U.S.C. § 3583(e)(2) and Rule 32.1(c) of the Federal Rules of Criminal Procedure for an order clarifying, and to the extent necessary modifying, the conditions of his supervised release, and for appointment of counsel under 18 U.S.C. § 3006A. The motion is supported by the accompanying Certification of Jeffrey Bernecky ("Certification") and its exhibits: the Treatment Contract of R.K.K.S. Mental Health Counseling PLLC (Ex. A, the "Contract"); the Authorization to Release Confidential Information (Ex. B, the "Release"); the Computer Monitoring Program Participant Agreement (Ex. C, the "Participant Agreement"); and this District's Amended Standing Order of March 22, 2019 (Ex. D, the "Standing Order").

I. PRELIMINARY STATEMENT

"Inevitably there is play in the joints as one distinguishes between [1] the permissible implementation by the Probation Office of a judicially imposed condition and [2] the impermissible imposition of a condition by the Probation Office itself." *United States v. Stuart*, No. 25-599, slip op. at 2 (2d Cir. Sept. 3, 2026). This motion concerns the second category.

On June 12, 2018, this Court sentenced Mr. Bernecky to 120 months in prison followed by ten years of supervised release on thirteen standard conditions and ten special ones. Judgment, Doc. 28, at 3–5. He was released on or about July 30, 2026, and has complied with every condition since. Certification ¶ __. In the ten weeks that followed, Probation and a private treatment provider have enforced a second set of conditions that the Court never imposed. Mr. Bernecky has been told

that he must disclose his conviction to every prospective sexual partner and furnish his therapist "acceptable proof of informed consent" before any sexual relationship; that he must display his conviction on any adult dating or social application he uses; that he may not speak with anyone in an online game whom he does not personally know; and that he may not view "sexually stimulating material(s) of any kind as defined by my treatment staff." Certification ¶¶ __; Ex. A.

None of that is in the Judgment, and some of it contradicts the Judgment. The risk-notification condition printed in the Judgment was vacated in *United States v. Boles*, 914 F.3d 95, 111–12 (2d Cir. 2019), and this District's Standing Order replaced it, in every judgment, with a condition that operates only after "the court determines" that the supervisee poses a risk, making any notification duty "wholly contingent on a subsequent determination by the district court." *United States v. Traficante*, 966 F.3d 99, 104 (2d Cir. 2020). No such determination exists. The minor-contact condition forbids "deliberate contact with any child under 18," not conversation with adults. The treatment condition requires Mr. Bernecky to "participate" and to follow the program's "rules and regulations"; it does not convert a private contract into his sentence. *United States v. Browder*, 866 F.3d 504, 513–14 (2d Cir. 2017). And the monitoring condition's command to avoid "reading any privileged information or any private material that is not illegal" is one that "constrains the supervisors in their surveillance." *United States v. Kunz*, 68 F.4th 748, 767 (2d Cir. 2023).

Probation executes the sentence. It does not write it. *United States v. Matta*, 777 F.3d 116, 122 (2d Cir. 2015). Mr. Bernecky does not contend that any condition is unlawful, and he does not seek relief from treatment or monitoring. He asks the Court to say what its conditions mean before he is returned to prison for violating rules no judge wrote. A supervisee "should be able to obtain resolution of a dispute over an ambiguous term or the meaning of a condition without first having to violate it." Fed. R. Crim. P. 32.1 advisory committee's note (1979), *quoted in Kunz*, 68 F.4th at 774 n.14.

II. BACKGROUND

Mr. Bernecky pleaded guilty to one count of possessing child pornography, 18 U.S.C. § 2252A(a)(5)(B), (b)(2), following a prior conviction for possession and distribution. Judgment at 1. Neither conviction involved contact with a child. Certification ¶ __. The Judgment's ten special conditions appear on page 5 without letters; this motion designates them (a) through (j) in the order they appear.[1] Four are at issue.

Special Condition (a) bars use of any internet-capable device unless Mr. Bernecky "participates in the Computer and Internet Monitoring Program (CIMP)." It requires "advance notification of any computer(s), automated service(s), or connected device(s) that will be used," authorizes software "to surveil all activity on computer(s) or connected device(s) owned or operated by the defendant," and provides for notice to Probation, and examinations, triggered by "impermissible/suspicious activity." It closes: "Any such monitoring or examinations shall be designed to avoid, as much as possible, reading any privileged information or any private material that is not illegal or reasonably likely to lead to illegal material or evidence related to illegal activity." Judgment at 5.

Special Condition (b) provides: "The defendant must participate in a sex offense-specific treatment program and follow the rules and regulations of that program. The probation officer will supervise the details of the defendant's participation in the program, including the selection of a provider and schedule. The defendant is not to leave treatment until complete or as ordered by the Court." *Id.* Special Condition (h) requires mental-health treatment on parallel terms and adds that Mr. Bernecky "shall abstain from the use of alcohol" while in treatment or on psychotropic medication. *Id.*

Special Condition (c) provides: "The defendant shall not have deliberate contact with any child under 18 years of age, excluding his biological or adopted children, unless approved by the

[1]In order, the conditions address (a) computer and internet monitoring, (b) sex-offense-specific treatment, (c) contact with minors and loitering, (d) financial access for child-pornography monitoring, (e) registration, (f) search, (g) polygraph testing, (h) mental-health treatment, (i) financial disclosure, and (j) possession of child pornography. Judgment at 5. Polygraph, employment, alcohol, finances, and residence are not raised in this motion.

probation officer or by the Court. The defendant shall not loiter within 100 feet of school yards, playgrounds, arcades or other places primarily used by children under the age of 18." *Id.*

Standard Condition 12, as printed, provides: "If the probation officer determines that you pose a risk to another person (including an organization), the probation officer may require you to notify the person about the risk and you must comply with that instruction." Judgment at 4. Standard Condition 13 requires Mr. Bernecky to "follow the instructions of the probation officer related to the conditions of supervision." *Id.* No condition addresses lawful adult sexual material, dating, sexual relationships, social media, speech with adults online, or any medication other than alcohol. Judgment at 3–5.

In 2019 the Second Circuit vacated the printed version of Standard Condition 12. *Boles*, 914 F.3d at 111–12. Chief Judge Geraci then entered the Standing Order, under which the District "will amend the Judgment and Commitment order in all criminal cases in which a term of probation or supervised release is imposed by removing the standard 'risk' condition and replacing it with the following language: If the court determines in consultation with your probation officer that, based on your criminal record, personal history and characteristics, and the nature and circumstances of your offense, you pose a risk of committing further crimes against another person (including an organization), the probation officer may require you to notify the person about the risk and you must comply with that instruction." Ex. D. The docket in this case reflects no such determination. Certification ¶ __.

At intake, Probation presented Mr. Bernecky with the original risk condition, the text *Boles* vacated, and had him sign an acknowledgment of it. Certification ¶ __. On July 30, 2026, he signed the Release, which authorizes R.K.K.S. to give Probation, among other things, the "type, frequency, and effectiveness of therapy (including psychotherapy notes)," and which warns that revoking it "could be considered a violation of a condition of my post-conviction supervision." Ex. B.

On August 19, 2026, he signed the Contract. Ex. A. Its "Special Conditions" recite: "I understand that I am required to disclose all my intimate partners to treatment staff. I understand

that I need to provide acceptable proof of informed consent to treatment staff which includes disclosure of my offense history in full prior to engaging in a sexual relationship." They bar "sexually explicit images or narratives without prior approval by treatment staff"; require that "any platforms," including "social media, dating sites, email, blog/discussion forums, gaming services, text apps," and "chat rooms," be "approved by treatment staff prior to use"; forbid "sexually stimulating material(s) of any kind as defined by my treatment staff"; and require notice within 24 hours of "any accidental, incidental, or intentional contact" with minors or "vulnerable populations (as defined by treatment staff)." *Id.* The Code of Conduct requires notice within 24 hours of "any relapse in problematic behavior" and of "criminal behaviors [outside of or in addition to Instant Offense or pending charges]." *Id.* Any violation is reported to "my supervising officer"; "law enforcement may be contacted"; and immediate discharge follows "other problem behavior not outlined in this Treatment Contract, as determined in the sole discretion of the staff of the Practice." Other discharge decisions belong to a "Treatment Team" that "is comprised of all therapists in the Practice, the Probation Officer, and the Probation Supervisor." *Id.* The line for individualized terms reads "No special conditions designated." The document closes: "I am required to follow all the conditions listed above regarding my treatment and behavior." *Id.*

The Participant Agreement requires notice of every device Mr. Bernecky "own[s] or ha[s] access to," including "electronic games, gaming consoles, blu ray players, and SMART TV's"; bars "any type of encryption" and "any anti-virus, anti-spyware, firewall, or internet security application" without prior approval; and requires permission before "ALL computer repairs and/or alterations." Ex. C ¶¶ 2–3, 15–17. Nothing in it, or anywhere else disclosed to Mr. Bernecky, describes how the monitoring is designed to avoid reading privileged material. Certification ¶ __. He is a pro se litigant in this Court and in a pending state proceeding, and his legal work is done on monitored devices. *Id.* ¶ __.

Since August, the following has occurred. Probation told Mr. Bernecky that it knew he had been conversing with other players in online games, which he does only on monitored devices, and directed him not to speak to anyone he does not personally know, because there is "no way to verify

their age or identity." He had already typed, in those games, that he would not speak with anyone under eighteen. He has complied. Certification ¶¶ __. He attended an event restricted to persons seventeen and older. Treatment staff faulted him for not reporting it in advance because of its "potential for pornographic material"; Probation then told him he should not have gone because minors "could have snuck in," and, when he observed that a grocery store presents a greater likelihood of proximity to minors, responded that a judge would not see it that way. *Id.* ¶¶ __. Treatment staff and Probation have told him that to use any adult social or dating application, such as Grindr, he must display his conviction on his profile. *Id.* ¶ __. His therapist told him that sex offenders are not permitted to take Viagra, even for a diagnosed condition. *Id.* ¶ __. Because of the disclosure requirements, he goes only to work and home. *Id.* ¶ __. His family's winter-holiday gatherings, which he has not attended since 2017, will include minor relatives in the presence of their parents. *Id.* ¶¶ __.

III. THE COURT MAY RESOLVE THESE DISPUTES NOW

Section 3583(e)(2) authorizes the Court to "modify, reduce, or enlarge the conditions of supervised release, at any time prior to the expiration or termination of the term." No change in circumstances is required. "So long as the court, when modifying supervised release conditions, considers the relevant 18 U.S.C. § 3553(a) sentencing factors, there is no additional requirement that it make a finding of new or changed circumstances with respect to the defendant." *United States v. Parisi*, 821 F.3d 343, 347 (2d Cir. 2016). The circumstances have changed in any event: conditions written in 2018 are being applied for the first time through a specific provider, a specific contract, and specific directives the Court could not have foreseen. *See United States v. Myers*, 426 F.3d 117, 129 (2d Cir. 2005).

Clarification is a settled use of the Rule. Rule 32.1 motions "are vehicles for modifying conditions of probation [or supervised release] when changing circumstances warrant it, or when terms in the order are unclear." *United States v. Lussier*, 104 F.3d 32, 36 (2d Cir. 1997) (internal quotation marks omitted). When Probation "does overstep [its] authority," the supervisee may

"seek recourse before the sentencing court." *Kunz*, 68 F.4th at 774 n.14 (quoting *United States v. Villafane-Lozada*, 973 F.3d 147, 153 (2d Cir. 2020)). The Second Circuit has granted exactly this relief, holding that Probation "may not enforce any provision of the CIMP that purports to authorize the probation officer to limit Kunz to one internet-connected device." *Id.* at 768. So has this District: on remand from the Second Circuit, Judge Vilardo held that "Browder cannot be forced to sign or abide by agreements that reach beyond the Court's ordered conditions." *United States v. Browder*, No. 1:10-cr-00263, Decision and Order (W.D.N.Y. Mar. 14, 2018) (Vilardo, J.).

The dispute is ripe. Challenges that turn on "the words on the page" are ripe when brought, *Stuart*, slip op. at 15 (quoting *United States v. Salvador*, 180 F.4th 470, 477 (2d Cir. 2026)), and *Traficante*'s ripeness holding is distinguished whenever the delegation "has already occurred and is not contingent on future judicial action." *Id.* at 17 (quoting *Villafane-Lozada*, 973 F.3d at 151). Nothing here is hypothetical: the Contract is signed, the directives have issued, and Mr. Bernecky is obeying them today. A supervisee "should not be required to await and undergo a criminal prosecution as the sole means of seeking relief." *United States v. Johnson*, 446 F.3d 272, 279 (2d Cir. 2006) (internal quotation marks omitted).

Nothing here attacks the legality of the sentence, which § 3583(e)(2) does not permit. *Lussier*, 104 F.3d at 34. Mr. Bernecky asks what the Judgment means, that rules outside the Judgment not be enforced as though they were in it, and for favorable modifications under the § 3553(a) factors. If the government does not object, no hearing is required. Fed. R. Crim. P. 32.1(c)(2).

IV. ARGUMENT

A. No Notification Obligation Exists Until This Court Makes the Determination the Standing Order Requires, and Neither Probation Nor a Therapist May Impose One

Whether a supervisee must tell third parties about his conviction is a question for the Court, and the Second Circuit has said so for twenty-five years. "[T]he court must determine, rather than leaving to the discretion of the probation officer, whether such notification is required." *United*

States v. Peterson, 248 F.3d 79, 86 (2d Cir. 2001) (per curiam), *quoted in Stuart*, slip op. at 22. *Boles* applied that rule to the condition printed in Mr. Bernecky's Judgment, holding it "vague and affords too much discretion to the probation officer" and "largely indistinguishable from the one we struck down in *Peterson*." 914 F.3d at 111–12. Boles, like Mr. Bernecky, was a child-pornography possessor with a prior conviction for the same offense. *Id.* at 99–100. The Standing Order then replaced the vacated condition throughout the District, and *Traficante* held that "the standing order amends all judgments in the district to replace the prior standard risk condition with the following new condition," so that "any obligation to notify at-risk individuals is wholly contingent on a subsequent determination by the district court that the supervisee poses a specific risk to such persons." 966 F.3d at 104. The appeal was from this Court, and the Second Circuit agreed "that the previous risk condition can no longer be imposed on him." *Id.* at 100; *accord United States v. Rasheed*, 981 F.3d 187 (2d Cir. 2020); *United States v. Birkedahl*, 973 F.3d 49 (2d Cir. 2020).

The operative condition is therefore the Standing Order's text, and it has not been triggered. The Court has made no determination that Mr. Bernecky "pose[s] a risk of committing further crimes against another person." Until it does, "the standing order can have no impact on [him]." *Traficante*, 966 F.3d at 104. His present duty to notify anyone of anything is zero.

What has happened instead is that the vacated condition is being enforced by other hands. Probation handed Mr. Bernecky the *Boles* text at intake and had him sign it. Certification ¶ __. A therapist's contract requires him to disclose his "offense history in full" to every prospective sexual partner and to prove "informed consent" to treatment staff before any sexual relationship. Ex. A. Probation and treatment staff require him to display the conviction on any dating or social application he uses. Certification ¶ __. Each is a notification requirement. Each was imposed without any court determination. And the dating-profile requirement goes further than anything in *Boles* or *Peterson*: it is notification not to an identified person at risk but to every stranger who opens the application.

Stuart confirms that this is the line that matters. The Second Circuit upheld a notification condition there only because "[t]he district court sufficiently defined the risks posed by Stuart and found it necessary to notify third parties of them," leaving Probation the task of "identify[ing] instances where that risk materializes on the ground." Slip op. at 27. The test is whether Probation "is equipped with a standard of decision that constrains its discretion and avoids arbitrary use of its delegated authority." *Id.* at 25 (quoting *Kunz*, 68 F.4th at 766). Here no court has defined any risk, found notification necessary, or supplied any standard. An intake form and a therapist's boilerplate are not a judicial determination.

The partner-disclosure requirement also fails on its own terms. In *United States v. Reeves*, 591 F.3d 77 (2d Cir. 2010), the Second Circuit vacated a court-imposed condition requiring a child-pornography possessor to tell any "significant romantic" partner about his offense. The condition "has no objective baseline," *id.* at 81, and it was not narrowly tailored to the right of intimate association because "it applies to any significant romantic relationship, even those which would not bring Reeves into contact with children." *Id.* at 83. The requirement "would almost certainly adversely affect, and could very well prematurely end, any intimate relationship he might develop, placing him at a greater risk of social isolation and thus impair, rather than enhance, his rehabilitation." *Id.* at 82. Mr. Bernecky's offense of conviction, unlike Reeves's, follows a prior conviction that included distribution, and the government will say so. That difference does not touch the holdings that matter. The Contract's clause is vaguer than the one *Reeves* vacated ("acceptable proof of informed consent," judged by a therapist), broader (every sexual relationship, not only significant ones), and imposed by no court at all. *Reeves* itself put the power where *Peterson* and *Boles* put it: "in the appropriate circumstance a court, on the recommendation of the Probation Department, could require a defendant to notify third-parties." *Id.* at 82. A court, on a record, with findings. *Matta*, 777 F.3d at 123. The isolation *Reeves* predicted has arrived: Mr. Bernecky goes to work and goes home. Certification ¶ __.

Special Condition (b) does not rescue the requirement. A general instruction to follow a program's rules cannot override the specific, court-controlled risk condition the Standing Order

created; treatment "cannot be implemented in a way that directly conflicts with other, specific conditions of his supervised release." *Browder*, 866 F.3d at 513 n.37. When a provider or Probation requires a supervisee to seek permission the Judgment does not require, "[t]he key question is not whether permission, if sought, would be granted; it is whether Browder can be required, by the Probation Office or its designee, to ask in the first place. Because such a requirement . . . would contradict, rather than execute, Browder's sentence, the Probation Office was plainly without power to impose it." *Id.* at 514. The same is true of a requirement to disclose. Nor does the Participant Agreement's bar on "misleading profiles," Ex. C ¶ 10, supply authority: a profile that omits a conviction is not misleading, and a CIMP term that adds a duty the Judgment lacks "exceed[s] the authority actually delegated by the district court." *Kunz*, 68 F.4th at 766.

The government may ask the Court to make the risk determination now. Mr. Bernecky welcomes scrutiny of a record that shows compliance and no contact offense. But such a finding, coupled with a notification duty, would "enlarge" the condition and entitle him to a hearing under Rule 32.1(c), *Traficante*, 966 F.3d at 105, with counsel, at which the Court would have to find a risk of "committing further crimes against another person" and tailor any notification to that risk. *Stuart*, slip op. at 25–27. That process cannot be skipped. The Court should declare that no notification obligation presently exists; that neither Probation nor any treatment provider may require Mr. Bernecky to disclose his offense history to sexual partners, to furnish proof of partner "consent," or to display his conviction on any online profile absent a determination by this Court after a Rule 32.1(c) hearing; and that the Contract's partner-disclosure and informed-consent clause is not enforceable as a condition of supervised release.

B. "Deliberate Contact With Any Child Under 18" Does Not Reach Speech With Adults or Adult Venues, and the Court Should Approve Holiday Family Contact Now

Special Condition (c) bars "deliberate contact with any child under 18." The Court chose "deliberate." That word excludes the two things Probation has treated as violations: talking with adults whose age is unverified, and being present where a minor might turn up.

"Generally, supervised release provisions are read to exclude inadvertent violations." *Johnson*, 446 F.3d at 281. The Supreme Court assumed that a condition barring "association" with ex-convicts does not reach "incidental contacts between ex-convicts in the course of work on a legitimate job." *Arciniega v. Freeman*, 404 U.S. 4, 4 (1971) (per curiam). *Johnson* applied that rule to a minor-contact condition, construing it to require "some purposeful initiative" and holding that "no violation occurs where incidental contact is followed by immediate removal." 446 F.3d at 281. Mr. Bernecky's condition is narrower than Johnson's: it already says "deliberate," and it contains no clause requiring him to avoid places where minors might be. Conditions must "provide clear notice of what conduct they prohibit" and may not "demand the impossible." *Id.* at 280–81.

The online-games directive rewrites the condition. Speaking with an adult stranger is not contact with a child. The directive bars speech with every person not personally known to Mr. Bernecky because age cannot be verified, which converts "deliberate contact with any child" into "any communication with any person not proven to be an adult." A directive that forbids what the condition permits "contradict[s], rather than execute[s]," the sentence, and Probation is "plainly without power to impose it." *Browder*, 866 F.3d at 514. Standard Condition 13 reaches instructions "related to the conditions of supervision"; an instruction that negates a condition's chosen limiting word is not related to it in any executing sense. The government may cite *Salvador*, 180 F.4th 470, which upheld on plain-error review a condition to abide by the instructions of immigration authorities and compared it to Standard Condition 13; but *Salvador* stressed that the condition handed no sentencing decision to anyone. A ban on speaking with adults online is a sentencing decision. If the Court wished to impose one, it would have to do so itself, because a restriction of that weight "would pose a significant burden on his liberty, and therefore would need to be imposed by the court and justified by particularized on-the-record findings." *Kunz*, 68 F.4th at 767; *see United States v. Eaglin*, 913 F.3d 88, 96 (2d Cir. 2019) (recognizing "a First Amendment right to access the Internet"); *Peterson*, 248 F.3d at 83 (possibility of telephone fraud "would not justify a condition of probation that includes an absolute bar on the use of telephones"). *Johnson* supplies

the rule the condition already contains: if Mr. Bernecky learns or has reason to believe he is communicating with a minor, he must disengage, and if he does, there is no violation.

The 17+ event is the same error from the other direction. The Judgment's place restriction reaches loitering within 100 feet of "school yards, playgrounds, arcades or other places primarily used by children." An event closed to anyone under seventeen is the opposite of such a place. Probation's justification, that a minor "could have snuck in," describes incidental presence, which *Johnson* excludes, and it proves too much: by that logic Mr. Bernecky may not enter a grocery store, a church, a pharmacy, or a courthouse. The Second Circuit has said there "would be no justification to forbid the defendant from being at parks and educational or recreational facilities where children do not congregate." *Peterson*, 248 F.3d at 86. Probation's answer, that a judge would not see it that way, is why this motion is before a judge.

The Contract compounds the problem by requiring a report within 24 hours of "any accidental, incidental, or intentional contact" with minors or with "vulnerable populations (as defined by treatment staff)." Ex. A. "Accidental" is not "deliberate," and a treatment term that imposes a "more punitive condition governing contact with minors than did the condition to which [the defendant] was actually sentenced" is one the supervisee is "well within his rights to object to." *Browder*, 866 F.3d at 513.

Family gatherings call for a different kind of relief, and the condition itself provides it: deliberate contact with a minor is permitted when "approved by the probation officer or by the Court." Judgment at 5. Mr. Bernecky asks the Court to grant that approval now, for the winter holidays, rather than leave each Thanksgiving and Christmas to an ad hoc request. His family's gatherings will include minor relatives, with their parents present throughout. Certification ¶¶ __. Contact conditions administered through case-by-case permission "would apply with full force to all routine family interaction—for example, Thanksgiving dinners or seders or christenings," *United States v. Jenkins*, 854 F.3d 181, 194 (2d Cir. 2017), and family relationships are liberty interests the § 3583(d) analysis protects. *Myers*, 426 F.3d at 125–26. Neither of Mr. Bernecky's convictions involved contact with a child. Approval of supervised family contact during the

holidays, on the terms proposed in the Conclusion, is the least restrictive course and the one the Judgment anticipates.

C. "Follow the Rules and Regulations of That Program" Incorporates the Program's Operating Rules, Not a Private Contract That Rewrites the Sentence

The government's strongest textual argument on every issue in this motion is six words in Special Condition (b): "follow the rules and regulations of that program." Read without limit, those words would make every sentence of any document a provider calls a rule a condition of supervised release, enforceable by imprisonment. The Second Circuit has rejected that reading, and so has the judge of this District who adopted the identical clause.

Browder controls. Browder's provider required him to sign a treatment agreement barring contact with minors, including his own children, without the approval of Probation and "the treatment team." His condition exempted his children. He refused to sign, was discharged, and was found in violation. The Second Circuit reversed: the agreement "would have subjected him to a more punitive condition governing contact with minors than did the condition to which Browder was actually sentenced by the District Court. Browder was therefore well within his rights to object to that term of the agreement." 866 F.3d at 513. Probation's approval changed nothing, in part because the agreement "required the approval not only of the Probation Office, but also of 'the treatment team'—something the District Court did not address and over which it had no direct oversight." *Id.* at 514. The agreement "even refers to its terms as 'conditions,'" *id.* at 513 n.38, and the delay caused by Browder's objection "did not pose the sort of risk that might warrant arrest and imprisonment." *Id.* at 513. On remand, Judge Vilardo re-imposed a treatment condition in the very words of Mr. Bernecky's Special Condition (b), and in the same order held that "Browder cannot be forced to sign or abide by agreements that reach beyond the Court's ordered conditions." *Browder*, No. 1:10-cr-00263 (W.D.N.Y. Mar. 14, 2018). That is the best evidence of what the clause means: it reaches the program's operating rules—attendance, punctuality, assignments, conduct in group, payment—and not terms that enlarge or contradict the sentence. The Contract

here closes with language nearly identical to the *Browder* agreement: "I am required to follow all the conditions listed above regarding my treatment and behavior." Ex. A.

The limiting principle is the law of delegation. "The power to impose special conditions of supervised release . . . is vested exclusively in the district court." *Matta*, 777 F.3d at 122. A court may delegate "minor details," such as "the selection of a therapy provider or treatment schedule," but "may not delegate to the Probation Department decisionmaking authority which would make a defendant's liberty itself contingent on a probation officer's exercise of discretion." *Id.* at 122–23. If Probation cannot hold that authority, a private provider that reports to Probation cannot hold it either. "[T]he Probation Office may supervise and execute a sentence but may not fashion a sentence's terms." *United States v. Carlineo*, 998 F.3d 533, 538 (2d Cir. 2021). *Carlineo* contrasted an unknown restorative-justice program with licensed treatment programs Probation vets, but the point here is not that R.K.K.S. is unknown; it is that the Contract's terms, read as sentence conditions, would make Mr. Bernecky's liberty depend on choices no court made.

Measured against the Judgment, the following Contract terms reach beyond it and cannot be enforced as conditions of supervised release. The partner-disclosure and informed-consent clause, for the reasons stated in Point IV.A. The ban on "sexually stimulating material(s) of any kind as defined by my treatment staff" and on "sexually explicit images or narratives" without staff approval: the Judgment prohibits child pornography and nothing else, Judgment at 5, and a court errs when it treats "the possession of adult pornography as reprehensible in itself, rather than as an otherwise lawful action." *Eaglin*, 913 F.3d at 100. *Eaglin* allows that a court may restrict lawful adult material on a record that supports it, *id.*, which is the point: a court, on a record. No court has done so here, and a term whose entire content is "as defined by my treatment staff" has "no objective baseline." *Reeves*, 591 F.3d at 81. A ban on "narratives" would reach memoirs on a library shelf. The requirement that "any platforms," including email and gaming services, be "approved by treatment staff prior to use": the Judgment governs Mr. Bernecky's internet use through the CIMP, which already gives Probation notice of new accounts, Ex. C ¶ 6, and nothing in it installs a therapist as gatekeeper of email. The "accidental, incidental, or intentional" contact-

reporting clause, for the reasons stated in Point IV.B. The provision for immediate discharge for "other problem behavior not outlined in this Treatment Contract, as determined in the sole discretion of the staff," which has no standard at all. And the "Treatment Team" that seats the probation officer and her supervisor among the clinicians who decide discharge: a discharge becomes the predicate for a violation petition, and when the officer who files the petition also votes on the discharge, Mr. Bernecky's liberty is "contingent on a probation officer's exercise of discretion" in the most direct way imaginable. *Matta*, 777 F.3d at 122. The Judgment gives Probation "the details of the defendant's participation in the program, including the selection of a provider and schedule," Judgment at 5, a *Peterson* details delegation, 248 F.3d at 85, not a seat on a clinical panel.

Two further terms raise constitutional concerns the Court can resolve by clarification. The Contract requires Mr. Bernecky to report within 24 hours any "relapse in problematic behavior" and any "criminal behaviors," and routes those reports to "my supervising officer" and, where staff see fit, to "law enforcement." Ex. A. When the state "asserts that invocation of the privilege would lead to revocation of probation, it would have created the classic penalty situation." *Minnesota v. Murphy*, 465 U.S. 420, 435 (1984). The Court knew how to avoid that problem when it wrote the Judgment: the polygraph condition preserves Mr. Bernecky's "right to challenge in a court of law the use of such statements" and provides that he "shall be deemed not to have waived" his Fifth Amendment rights. Judgment at 5. The Contract has no such clause. The Court should clarify that Special Condition (b) does not require Mr. Bernecky to report uncharged criminal conduct to treatment staff and that invoking the Fifth Amendment is not a failure to participate. Relatedly, the Release authorizes disclosure of "psychotherapy notes" and warns that revocation "could be considered a violation." Ex. B. Probation's statutory duty is to "keep informed, to the degree required by the conditions specified by the sentencing court." 18 U.S.C. § 3603(2). Everything the conditions require Probation to know—attendance, participation, progress, diagnosis, treatment plan, test results—is available without the notes of what was said in session, which federal law places in a protected category of their own. 45 C.F.R. §§ 164.501, 164.508(a)(2); *Jaffee v.*

Redmond, 518 U.S. 1 (1996). Mr. Bernecky asks only that the Release be limited to what Probation needs to verify his compliance. And because a therapist has told him that sex offenders may not take Viagra, Certification ¶ __, the Court should confirm that no condition restricts any lawful medication other than alcohol.

What remains is the word "participate." Mr. Bernecky asks the Court to define it, because a word that carries a prison term must have content, and the Contract's definition of participation is whatever the staff decides. He proposes that "participate" means attending scheduled sessions absent good cause, completing assigned work, and engaging in good faith with treatment regarding the offense of conviction, which he has done and will continue to do. Certification ¶ __. He does not propose that attendance alone suffices; the Second Circuit has affirmed a violation where a supervisee refused to acknowledge his offense of conviction, *United States v. Browder*, No. 17-1238-cr (2d Cir. Mar. 30, 2020) (summary order), and that is not his position. He proposes further that a provider's rule is enforceable as a condition of supervised release only insofar as it implements a condition in the Judgment without enlarging or contradicting it, and that discharge from a program is not itself a violation. R.K.K.S. remains free to run its practice on whatever terms it chooses. The only question here is whether those terms are this Court's sentence. They are not.

D. The Monitoring Program Must Be Administered as the Judgment Requires: Privileged and Lawful Material Protected, Devices Limited to the Judgment's Text

Mr. Bernecky does not challenge computer monitoring. He challenges four respects in which the program, as written and as administered, departs from the condition the Court imposed.

First, the privilege clause. The Judgment commands that monitoring "be designed to avoid, as much as possible, reading any privileged information or any private material that is not illegal." Construing this identical language, the Second Circuit held that it "constrains the supervisors in their surveillance of Kunz by requiring them not to abuse their power and access." *Kunz*, 68 F.4th at 767. Judge Vilardo, adding the clause to Browder's conditions, called it "an explicit instruction to those monitoring Browder's computer: they are to avoid, as much as possible, reading any

privileged or innocent material," and wrote that "[t]he Probation Office and Remote.com are authorized to search for contraband, not to willy-nilly read whatever they please." *Browder* (W.D.N.Y. Mar. 14, 2018). The Fourth Amendment rule is the same: a monitoring condition "must be narrowly tailored, and not sweep so broadly as to draw a wide swath of extraneous material into its net," and "if other information is inadvertently gathered . . . those monitoring compliance should remain conscientiously unaware of that data." *United States v. Lifshitz*, 369 F.3d 173, 190 (2d Cir. 2004). Mr. Bernecky's legal drafts, research, and communications with the Court are composed on monitored devices, and nothing disclosed to him describes any mechanism by which that material is excluded from capture or review. Certification ¶ __. Neither the Court nor he can know whether the condition is being honored. He asks the Court to direct Probation to disclose how the program is designed to comply with the clause, and to adopt a protocol under which communications with counsel or the Court and drafts of legal filings are excluded from review or segregated for review only by a person uninvolved in his supervision.

Second, the use of monitoring output. The Judgment ties notification and examination to "impermissible/suspicious activity." Read with *Matta* and *Browder*, "impermissible" means impermissible under the law or the conditions the Court imposed. Yet monitoring output was used to enforce a rule found nowhere in the Judgment: Probation learned of lawful conversations with adults in online games and used that knowledge to forbid them. Certification ¶¶ __. In *Browder*, the monitoring passed constitutional muster in part because the vendor "notifies the Probation Office only if it detects 'contraband.'" 866 F.3d at 512. The Court should clarify that monitoring output may be used to detect violations of law and of court-imposed conditions, not to police rules created by Probation or a provider.

Third, device scope. The Judgment requires notice of devices "that will be used" and authorizes surveillance of devices "owned or operated by the defendant." Judgment at 5. The Participant Agreement demands notice of every device Mr. Bernecky "own[s] or ha[s] access to," down to "blu ray players, and SMART TV's." Ex. C ¶¶ 2–3. Judge Vilardo rejected the identical term: the supervisee "must provide information about only those computers he will use and not all

those to which he has 'access,' whatever that means." *Browder* (W.D.N.Y. Mar. 14, 2018). A CIMP term that "exceeds the authority actually delegated to Probation by the district court . . . may not be enforced as written." *Kunz*, 68 F.4th at 768. The device clauses should be conformed to the Judgment's text.

Fourth, the approval terms. Mr. Bernecky accepts that prior-approval requirements for encryption, system alterations, and security software are, in general, "matters of detail" within Probation's purview. *Kunz*, 68 F.4th at 766. But *Kunz* construed those terms to "preclude a defendant's active attempts to avoid monitoring, not to punish a passive defendant for innocuous day-to-day activities," *id.* at 763, held that they do not reach encryption the supervisee does not initiate, such as "https" websites, and observed that nothing prevents Probation from granting "blanket permission" for standard updates. *Id.* at 763–64. The Court should adopt those constructions expressly and direct blanket approval for vendor-compatible antivirus and firewall software and routine operating-system updates. A monitored computer forbidden to run security software is a computer that can be compromised, which serves no one, least of all the monitors.

E. Counsel Should Be Appointed

Representation "shall be provided for any financially eligible person who . . . faces modification, reduction, or enlargement of a condition . . . of supervised release." 18 U.S.C. § 3006A(a)(1)(E). Rule 32.1(c)(1) provides that at any hearing to modify conditions "the person has the right to counsel." Mr. Bernecky faces modification in both directions: he seeks it, and the government may seek a risk determination that would enlarge his conditions. *Traficante*, 966 F.3d at 105. Independently, a person for whom counsel was appointed "shall be represented at every stage of the proceedings . . . including ancillary matters appropriate to the proceedings." 18 U.S.C. § 3006A(c). Mr. Bernecky was represented at sentencing by appointed counsel. Judgment at 1; Certification ¶ __. At least one district court has appointed counsel under § 3006A(c) on a supervisee's own motion to clarify his conditions. *United States v. Shannon*, No. 06-cr-179-bbc (W.D. Wis. Mar. 16, 2015). Mr. Bernecky is financially eligible and will submit a CJA Form 23.

Certification ¶ __. Questions that require courts to "survey many gray areas and draw many subtle lines," *Kunz*, 68 F.4th at 765–66, should not be litigated against the United States by a layman.

V. CONCLUSION

For these reasons, Mr. Bernecky respectfully requests an order:

(1) declaring that, under the Standing Order as construed in *Traficante*, no risk-notification obligation presently applies to him because the Court has made no determination under the amended Standard Condition 12, and that neither Probation nor any treatment provider may require him to disclose his offense history to sexual partners, to furnish proof of a partner's consent, or to display his conviction on any online profile, absent such a determination after a hearing under Rule 32.1(c);

(2) clarifying that "deliberate contact with any child under 18" means knowing, purposeful contact with a person Mr. Bernecky knows or has reason to believe is under eighteen; that communicating online with adults, including strangers whose age is unverified, does not violate Special Condition (c), subject to his duty to disengage upon learning or having reason to believe that a person is a minor; that attending venues not "primarily used by children" does not violate Special Condition (c); and vacating Probation's directive that he not speak with anyone he does not personally know;

(3) approving, under Special Condition (c), his attendance at family gatherings during the 2026–2027 winter holidays at which minor relatives are present, on condition that a parent or guardian of each minor is present and that he have no unsupervised one-on-one contact with any minor;

(4) clarifying that "participate" in Special Conditions (b) and (h) means attending scheduled sessions absent good cause, completing assigned work, and engaging in good faith with treatment regarding the offense of conviction; that a provider's rule is enforceable as a condition of supervised release only insofar as it implements a condition of the Judgment without enlarging or contradicting it; that discharge from a program is not itself a violation; that the Contract's partner-

disclosure, sexually-stimulating-material, platform-approval, accidental-contact-reporting, sole-discretion-discharge, and Treatment Team provisions are not enforceable as conditions of supervised release; that Special Condition (b) does not require him to report uncharged criminal conduct or waive the Fifth Amendment; that no condition restricts lawful medication other than as stated in Special Condition (h); and limiting the Release to attendance, participation, progress, diagnosis, treatment plan, and test results;

(5) directing Probation to disclose how the monitoring program is designed to comply with the privilege clause of Special Condition (a); adopting a protocol excluding communications with counsel or the Court and drafts of legal filings from review; clarifying that monitoring output may be used only to detect violations of law or of court-imposed conditions; conforming paragraphs 2 and 3 of the Participant Agreement to the Judgment's "will be used" and "owned or operated" language; and adopting the *Kunz* constructions of the encryption, alteration, and update terms, with blanket approval of vendor-compatible security software and routine updates;

(6) appointing counsel under 18 U.S.C. § 3006A; and

(7) granting such other relief as the Court deems just.

Dated: October __, 2026
Rochester, New York

Respectfully submitted,

_____

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